

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-03

EUROMARKET DESIGNS, INC.,
COMPLAINANT,

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA;
OCEAN NETWORK EXPRESS PTE. LTD.; EVERGREEN
LINE JOINT SERVICE AGREEMENT (FMC
AGREEMENT NO. 011982); EVERGREEN MARINE
CORP. (TAIWAN) LTD.; EVERGREEN MARINE (UK)
LIMITED; ITALIA MARITTIMA SPA; EVERGREEN
MARINE (HONG KONG) LTD.; EVERGREEN MARINE
(SINGAPORE) PTE. LTD.; HMM COMPANY LIMITED;
MAERSK A/S; CMA CGM S.A.; APEX MARITIME CO.,
INC.; CHINA UNITED TRANSPORT, INC.; COSCO
SHIPPING LINES CO., LTD.; AND WAN HAI LINES
LTD.,
RESPONDENTS.

MOTION TO DISMISS COMPLAINT WITH PREJUDICE

Complainant Euromarket Designs, Inc. (“EDI” or “Complainant”) hereby moves to dismiss all claims in the above-captioned proceeding with respect to APEX Maritime Co. (“APEX” or “Respondent”) pursuant to 46 C.F.R. §502.72(a)(3) and states as follows:

This proceeding was commenced on December 31, 2024 with the filing of the Complaint, in which EDI alleged that APEX had violated 46 U.S.C. 41104(c). APEX timely answered the Complaint on February 3, 2025, denying all allegations made.

During the pendency of the Presiding Officer’s decision on the outstanding

motion to sever, the Parties have reached an agreement to confidentially settle the claims. A copy of the Confidential Settlement Agreement has been provided to the Presiding Officer. The Parties have requested confidential treatment of the Settlement Agreement. Commission Rule 72(a)(3) states,

[A]n action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper. If the motion is based on a settlement by the parties, the settlement agreement must be submitted with the motion for determination as to whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable. 46 C.F.R. 502.72(a)(3).

The Commission's consistent policy is to "encourage settlements and engage in every presumption which favors a finding that they are fair, correct, and valid." *Access One Transport, Inc., v. CMA CGM S.A.*, Docket No. 24-18, 2024 WL 5119296 at *1 (ALJ Dec. 10, 2024) (quoting *Inlet Fish Producers, Inv. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ May 9, 2002) and *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 21 F.M.C. 506, 512, 18 S.R.R. 1085, 1091 (ALJ Nov. 29, 1978)). Although it generally follows this policy, "the Commission does not merely rubber stamp any proffered settlement, no matter how anxious the parties may be to terminate their litigation." *Access One*, 2024 WL 5119296 at * 2 (quoting *Old Ben Coal*, 18 S.R.R. at 1093). A settlement agreement that does not violate any law or policy and is free of fraud, duress, undue influence, mistake, or other defect that might make it unapprovable would likely be approved. *Id.* "[I]f it is the considered judgment of the parties that whatever benefits might result from the vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. U.S. Atlantic & Gulf/Australia – New Zealand Conf. and Columbus Line, Inc.*, 24 S.R.R. 1129, 1134, 1988 WL 340657 at

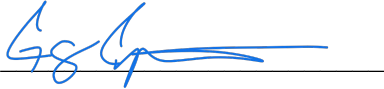
*7 (ALJ Aug. 12, 1988).

An examination of the Confidential Settlement Agreement demonstrates that it contains no violation of law or policy, and is free of fraud, duress, undue influence, mistake, or other defect that might make it unapprovable. Moreover the terms are fair, reasonable, and adequate.

WHEREFORE, the Parties respectfully request that the Confidential Settlement Agreement be approved, that APEX be dismissed from this proceeding, and that all claims against APEX be dismissed with prejudice.

Dated: May 18 , 2026

Respectfully Submitted,



HUTH REYNOLDS LLP

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

Luke Rushing

(202) 420-9628

lrushing@huthreynolds.com

Heewan Noh

(202) 420-9628

hnoh@huthreynolds.com

Jack Mitchell

(202) 420-9628

jmitchell@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

Attorneys for Complainant Euromarket Designs, Inc.